

Opinion of the Court

require federal courts to stay all private actions against the President until he leaves office.

The reasons for rejecting such a categorical rule apply as well to a rule that would require a stay “in all but the most exceptional cases.” Brief for Petitioner i. Indeed, if the Framers of the Constitution had thought it necessary to protect the President from the burdens of private litigation, we think it far more likely that they would have adopted a categorical rule than a rule that required the President to litigate the question whether a specific case belonged in the “exceptional case” subcategory. In all events, the question whether a specific case should receive exceptional treatment is more appropriately the subject of the exercise of judicial discretion than an interpretation of the Constitution. Accordingly, we turn to the question whether the District Court’s decision to stay the trial until after petitioner leaves office was an abuse of discretion.

VII

The Court of Appeals described the District Court’s discretionary decision to stay the trial as the “functional equivalent” of a grant of temporary immunity. 72 F. 3d, at 1361, n. 9. Concluding that petitioner was not constitutionally entitled to such an immunity, the court held that it was error to grant the stay. *Ibid.* Although we ultimately conclude that the stay should not have been granted, we think the issue is more difficult than the opinion of the Court of Appeals suggests.

Strictly speaking the stay was not the functional equivalent of the constitutional immunity that petitioner claimed, because the District Court ordered discovery to proceed. Moreover, a stay of either the trial or discovery might be justified by considerations that do not require the recognition of any constitutional immunity. The District Court has broad discretion to stay proceedings as an incident to its power to control its own docket. See, e. g., *Landis v. North*

Opinion of the Court

American Co., 299 U.S. 248, 254 (1936). As we have explained, “[e]specially in cases of extraordinary public moment, [a plaintiff] may be required to submit to delay not immoderate in extent and not oppressive in its consequences if the public welfare or convenience will thereby be promoted.” *Id.*, at 256. Although we have rejected the argument that the potential burdens on the President violate separation-of-powers principles, those burdens are appropriate matters for the District Court to evaluate in its management of the case. The high respect that is owed to the office of the Chief Executive, though not justifying a rule of categorical immunity, is a matter that should inform the conduct of the entire proceeding, including the timing and scope of discovery.⁴¹

Nevertheless, we are persuaded that it was an abuse of discretion for the District Court to defer the trial until after the President leaves office. Such a lengthy and categorical stay takes no account whatever of the respondent’s interest in bringing the case to trial. The complaint was filed within the statutory limitations period—albeit near the end of that period—and delaying trial would increase the danger of

⁴¹ Although these claims are in fact analytically distinct, the District Court does not appear to have drawn that distinction. Rather than basing its decision on particular factual findings that might have buttressed an exercise of discretion, the District Court instead suggested that a discretionary stay was supported by the *legal conclusion* that such a stay was required by *Fitzgerald*. See 869 F. Supp., at 699. We therefore reject petitioner’s argument that we lack jurisdiction over respondent’s cross-appeal from the District Court’s alternative holding that its decision was “also permitted,” *inter alia*, “under the equity powers of the Court.” *Ibid.* The Court of Appeals correctly found that pendent appellate jurisdiction over this issue was proper. See 72 F. 3d, at 1357, n. 4. The District Court’s legal ruling that the President was protected by a temporary immunity from trial—but not discovery—was “inextricably intertwined,” *Swint v. Chambers County Comm’n*, 514 U.S. 35, 51 (1995), with its suggestion that a discretionary stay having the same effect might be proper; indeed, “review of the [latter] decision [is] necessary to ensure meaningful review of the [former],” *ibid.*

Opinion of the Court

prejudice resulting from the loss of evidence, including the inability of witnesses to recall specific facts, or the possible death of a party.

The decision to postpone the trial was, furthermore, premature. The proponent of a stay bears the burden of establishing its need. *Id.*, at 255. In this case, at the stage at which the District Court made its ruling, there was no way to assess whether a stay of trial after the completion of discovery would be warranted. Other than the fact that a trial may consume some of the President's time and attention, there is nothing in the record to enable a judge to assess the potential harm that may ensue from scheduling the trial promptly after discovery is concluded. We think the District Court may have given undue weight to the concern that a trial might generate unrelated civil actions that could conceivably hamper the President in conducting the duties of his office. If and when that should occur, the court's discretion would permit it to manage those actions in such fashion (including deferral of trial) that interference with the President's duties would not occur. But no such impingement upon the President's conduct of his office was shown here.

VIII

We add a final comment on two matters that are discussed at length in the briefs: the risk that our decision will generate a large volume of politically motivated harassing and frivolous litigation, and the danger that national security concerns might prevent the President from explaining a legitimate need for a continuance.

We are not persuaded that either of these risks is serious. Most frivolous and vexatious litigation is terminated at the pleading stage or on summary judgment, with little if any personal involvement by the defendant. See Fed. Rules Civ. Proc. 12, 56. Moreover, the availability of sanctions provides a significant deterrent to litigation directed at the President in his unofficial capacity for purposes of political

Opinion of the Court

gain or harassment.⁴² History indicates that the likelihood that a significant number of such cases will be filed is remote. Although scheduling problems may arise, there is no reason to assume that the district courts will be either unable to accommodate the President's needs or unfaithful to the tradition—especially in matters involving national security—of giving “the utmost deference to Presidential responsibilities.”⁴³ Several Presidents, including petitioner, have given testimony without jeopardizing the Nation's security. See *supra*, at 704–705. In short, we have confidence in the ability of our federal judges to deal with both of these concerns.

If Congress deems it appropriate to afford the President stronger protection, it may respond with appropriate legislation. As petitioner notes in his brief, Congress has enacted more than one statute providing for the deferral of civil litigation to accommodate important public interests. Brief for Petitioner 34–36. See, *e. g.*, 11 U. S. C. § 362 (litigation against debtor stayed upon filing of bankruptcy petition); Soldiers' and Sailors' Civil Relief Act of 1940, 50 U. S. C. App. §§ 501–525 (provisions governing, *inter alia*, tolling or stay of civil claims by or against military personnel during course of active duty). If the Constitution embodied the rule that

⁴² See, *e. g.*, Fed. Rule Civ. Proc. 11; 28 U. S. C. § 1927; *Chambers v. NASCO, Inc.*, 501 U. S. 32, 50 (1991) (noting that “if in the informed discretion of the court, neither the statute nor the Rules are up to the task, the court may safely rely on its inherent power” in imposing appropriate sanctions). Those sanctions may be set at a level “sufficient to deter repetition of such conduct or comparable conduct by others similarly situated.” Fed. Rule Civ. Proc. 11(c)(2). As Rule 11 indicates, sanctions may be appropriate where a claim is “presented for any improper purpose, such as to harass,” including any claim based on “allegations and other factual contentions [lacking] evidentiary support” or unlikely to prove well-grounded after reasonable investigation. Rules 11(b)(1), (3).

⁴³ *United States v. Nixon*, 418 U. S., at 710–711; see also *Fitzgerald*, 457 U. S., at 753 (“Courts traditionally have recognized the President's constitutional responsibilities and status as factors counseling judicial deference and restraint”).